



File No.: EXP202306262

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on April 12, 2021. The complaint is directed against LODEJU, S.L. with NIF B92047745 (hereinafter, the respondent). The reasons for the complaint are as follows:

“the respondent is responsible for two establishments that have a video surveillance system oriented towards public roads, without administrative authorization for this, and without placing informative signs about the monitored area in the vicinity of its location.”

Along with the notification, documentary evidence regarding the presence of the cameras oriented disproportionately is provided (Annex I Complaint Document).

SECOND: On July 27, 2021, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

THIRD: A sanctioning procedure was initiated against the respondent by this agency under the initial reference number ***PROCEDIMIENTO.1, with the actions being subject to electronic notification as it concerns a legal entity, obligated to do so under the terms of Article 14, paragraph 2 of the LPAC (Law 39/2015, October 1).

FOURTH: On April 4, 2022, a Resolution was issued within the framework of ***PROCEDIMIENTO.1 confirming the improper orientation of the installed cameras, as well as the deficiency in the informative signage, with the entity being sanctioned in the following terms:

IMPOSE on the company LODEJU, S.L., with NIF B92047745, for an infringement of Article 5.1.c) and 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €3000 (three thousand euros).

FIFTH: On March 17, 2023, a Resolution of the Resolution of the Director of this agency was issued, in the terms of Article 109.1 of Law 39/2015 (October 1), considering that the respondent had not been aware of the facts subject to judgment by this Agency, with the aforementioned revocation agreement being notified in due time and form, as evidenced in the information system of this agency.

REVOKE the resolution of the ***PROCEDIMIENTO.1, dated April 4, 2022, instructed against LODEJU, S.L., with NIF B92047745.

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SIXTH: On March 31, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate a sanctioning procedure against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

SEVENTH: Upon consulting the database of this Agency, the Start Agreement is recorded as as evidenced by the Official Postal and Telegraph Service on April 17, 2023, with the identification of the recipient of the notification made.

EIGHTH: On June 19, 2023, a was issued in which it is considered proven the presence of video surveillance cameras affecting public space without justified cause affecting the processing of an indeterminate number of persons, as well as that the informative signage presents deficiencies, which justified a proposed sanction amounting to €3000 (three thousand euros), for the proven infringements of Articles 5.1 c) and 13 of the GDPR.

Upon consulting the information system of this Agency, it was notified on July 6, 2023, at 17:34. As confirmed by the Official Postal Service.

NINTH: Upon consulting the database of this Agency on July 21, 2023, no response has been received, nor has any corrective measure been evidenced in this regard.

From the actions taken in this procedure and the documentation in the file, the following has been proven:

PROVEN FACTS

First. The facts arise from the complaint dated April 12, 2021, through which the following is conveyed: "a camera with a white casing has been placed hidden among the plants as indicated in the attached photo. This camera is oriented towards the entrance door of my house (...)" -folio No. 1--.

"Finally, I want to express that in our case we learned about the existence of these cameras from the same respondent. Because on March 17, 2021, he sent a WhatsApp to my husband, stating that he has cameras recording 24 hours (Attached is the screenshot of that conversation)." -folio No. 1--.

Along with the complaint, documentary evidence (Annex I) is provided that proves the presence of the device, as well as images obtained from the device in question.

Second. It is identified as the main responsible for the installation Mr. B.B.B., as reflected in the Local Police report (Marbella) dated November 1, 2021.

Third. It is proven that the respondent lacks an informative sign in a visible area indicating that it is a video-monitored area, stating the "responsible for the processing" or the purpose of capturing the images.

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Fourth. The presence of video surveillance devices affecting a public area without justified cause is duly accredited, exercising control reserved for the State Security Forces and Bodies, obtaining images of public space where various tables have been placed adjacent to the establishment Restaurant El Cortijo.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In this case, the complaint regarding the presence of a "video surveillance camera" affecting the complainant's rights and excessively capturing public space without justified cause is analyzed. Since the facts presented have not expired, and after this agency has extensively warned about the need to regularize the video surveillance system subject to the complaint, as well as being informed of the content of the current Article 14, paragraph 2 of Law 39/2015 (October 1) regarding the obligation of notifications by electronic means, the processing of this procedure is initiated, transferring to it the actions carried out within the framework of ***PROCEDURE.1.

The content of Article 5.1(c) GDPR is initially considered affected, which states: "Personal data shall be:

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are

processed ('data minimization');

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

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The installed cameras must be oriented towards private property, avoiding intimidation of nearby homes and/or public space with such devices.

Under no circumstances may the cameras record images of the public thoroughfare or neighboring homes (except for access to the property), as this would be the responsibility of the State Security Forces and Bodies.

The installed cameras must be appropriate for the intended purpose, that is, the protection of the main access to the residential area, avoiding any impact on the privacy of neighbors or nearby homes that are affected by the recording of images.

III

In accordance with the evidence available in this sanctioning procedure, it is considered that the respondent has a video surveillance system that disproportionately affects public space.

The respondent, as confirmed by the Act (Site Inspection) of the Security Forces (Local Police Marbella) dispatched to the scene of the events—***ADDRESS.1 (Marbella-Málaga)—has image capture devices, which can be viewed on the owner's mobile—B.B.B.—.

The fact that the holder of the hospitality activity has a terrace license does not justify the installation of a video surveillance system that monitors the width of public space, as this is a task reserved for the Local Security Forces and Bodies, who are responsible for monitoring public space.

The known facts constitute an infringement attributable to the respondent, classified under Article 5.1(c) GDPR, previously cited, as one of them controls adjacent public space to one of its establishments without justified cause for doing so.

Article 72, paragraph 1(a) establishes a statute of limitations of three years for "infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

"a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

IV

Item, the establishment lacks an informative sign indicating that it is a video-monitored area, such that passersby are unaware that it is a video-monitored area, with their data being processed by a conveniently disguised camera.

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The facts presented constitute a violation of Article 13 of the GDPR, as there is a lack of a duly approved informational sign indicating the data controller or the purpose(s) of the processing carried out with the device in question.

Article 22 of Organic Law 3/2018 (December 5) - LOPDGDD - states: "1. Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the safety of persons and property, as well as their facilities (...)."

4. The duty of information provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informational device in a sufficiently visible location identifying, at a minimum, the

existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. A connection code or internet address to this information may also be included in the informational device.

In any case, the data controller must keep the information referred to in the aforementioned regulation available to the affected parties.

The AEPD, in a related report, stipulates that it is not necessary for the signs to be placed directly below the cameras. It is sufficient to place them in a visible location that includes both open and closed spaces where the video camera circuit is operational.

This sign shall be displayed in a visible location, and at a minimum, at the entrances to the monitored areas, whether indoors or outdoors.

In the event that the monitored space has several entrances, such a sign indicating the monitored area must be provided at each of them.

It is reminded that the cameras must be oriented (for example, in the case of the store) at most towards the façade to avoid, as a guideline, the breaking of the display window or towards the main access points, while the interior cameras must be marked with an informational sign indicating their presence to potential customers.

Article 72 letter h) of the current LO 3/2018 (LOPDGDD) states, "According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years for substantial violations of the articles mentioned therein, particularly the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law (...).

V

Article 83.5 of the GDPR states the following: "Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, of an amount equivalent to...

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up to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount: a) the basic principles for processing, including the conditions for consent pursuant to Articles 5, 6, 7, and 9; b) the rights of the data subjects pursuant to Articles 12 to 22 (...)

In motivating the sanction, the following is taken into account:

- the nature, gravity, and duration of the infringement, considering the nature, scope, or purpose of the processing operation in question, as well as the number of affected data subjects and the level of damages they have suffered; (art. 83.2 a) GDPR).

- the intentionality or negligence in the infringement; (art. 83.2 b) GDPR), when proceeding to obtain images from a public area, whose jurisdiction is reserved for the State Security Forces and Bodies, being considered a serious negligence for the reasons stated.

It is noted that against the respondent, ***PROCEDURE.1 has been processed, being aware of it when filing a request for reconsideration against the Director's Resolution dated 04/04/22, as well as that preliminary inquiries were carried out by the Local Police of the locality, without any corrective measure or written document aimed at correcting the detected irregularities having been submitted to this Agency to date.

The cameras are oriented towards a public transit area, exceeding the necessary capture angle for the protection of the establishment, affecting the rights of third parties who feel intimidated by them as they consider themselves to be recorded by them, without the presence of an informative sign(s) in a visible area regarding this matter.

Thus, it is deemed appropriate to impose a sanction amounting to €2000 (Two thousand euros) for the infringement of art. 5.1 c) GDPR and €1000 (One thousand euros) for the infringement of art. 13

GDPR, due to the lack of the required signage, with the total sum of both amounts being €3000 (Three thousand euros), a sanction situated at the lower end of the scale for this type of behavior.

VI

The text of the resolution establishes what the committed infringements were and the facts that led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in C/ Jorge Juan, 6

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under Article 83.5 and 83.6, such conduct may motivate the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on LODEJU S.L with NIF B92047745 for an infringement of Article 5.1.c) and 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine amounting to €3000 (three thousand euros).

SECOND: TO NOTIFY this resolution to LODEJU S.L and LODEJU, S.L.

THIRD: TO ORDER LODEJU S.L with NIF B92047745, pursuant to Article 58.2.d) of the GDPR, within 15 working days from the day following the notification of this administrative act, to prove compliance with the following measures:

- Removal and/or reorientation of the external cameras, so that public space is not captured, nor are the outdoor tables of the establishment monitored, providing photographs with date and time that prove this fact.

- Placement in a visible area of a sign compliant with current regulations, as well as proof of having an information form available to customers to exercise their rights under the current GDPR.

FOURTH: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXES-BBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed during the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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